

ALCOHOL, DRUGS, TOBACCO, AND ELECTRONIC CIGARETTES

Alcohol, drugs, tobacco, electronic cigarettes (“e-cigarettes”), and other highly addictive chemicals and medications that impact the physical, social, emotional, and intellectual development of students are prohibited. Students are expected to adhere to the law; Policy 8240, Alcohol, Drugs, Tobacco, and Electronic Cigarettes; and this regulation. Any alcohol, drugs, tobacco, e-cigarettes (to include vape pens), or drug paraphernalia will be confiscated and given to the school resource officer/law enforcement.

For the purpose of determining the disciplinary consequences, the subsection of this regulation pertaining to the student’s current violation shall govern.

A. Violations Involving Non-Prescription (Over-The-Counter) Medication.

1. Non-prescription medication includes products such as aspirin, cough syrups, gargles, caffeine pills, homeopathic treatments, and the like. Non-prescription medications may only be taken by students under the supervision of employees that have been trained and approved by Loudoun County Public Schools (LCPS) to administer non-prescription medication. A parent, legal guardian, eligible student, or other responsible adult must take all medication, including non-prescription medication, to the school clinic or office designated by the principal at the start of the school day for safekeeping.

2. A student who possesses, uses, or distributes non-prescription medication (not for the purpose of abuse) may be disciplined at the discretion of the principal up to and including a one-day assignment to in-school restriction (ISR). A violation of this subsection shall not be considered or counted for purposes of determining the student’s cumulative violations where such is contemplated below.

- a. Notwithstanding the provisions of this subsection and in accordance with Policy 8420, Student Medication, and Virginia's Good Samaritan law (§ 8.01-225), a student who, in good faith, carries naloxone hydrochloride (HCL) nasal spray and/or administers naloxone HCL nasal spray to an individual experiencing an opioid overdose will not face disciplinary action.

3. A student who possesses, uses, or is under the influence of non-prescription medication for the purpose of abuse shall be disciplined as described below:

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- a. A student's first violation of Policy 8240 and this accompanying regulation within two calendar years that is also a violation of this subsection shall result in a three-day assignment to ISR and a referral to the school-based Student Assistance Specialist (SAS), who will assess the student and provide school-based support, which may include assignment to an LCPS Substance Use Education class.
- b. A student's second and subsequent violation of Policy 8240 and this accompanying regulation within two calendar years that is also a violation of this subsection shall result in disciplinary action at the discretion of the principal of no less than a five-day assignment to ISR and no more than a ten-day suspension from school. The student shall also be referred to the school-based SAS, who will assess the student and provide school-based support, which may include assignment to a Substance Use Education class.

4. A student who distributes or possesses with the intent to distribute any non-prescription medication for the purpose of abuse shall receive a disciplinary sanction at the discretion of the principal, of no less than a five-day assignment to ISR and no more than a ten-day suspension from school. The student shall also be referred to the school-based SAS, who will assess the student and provide school-based support.

B. Violations Involving the Possession and Use of One's Own Prescription Medication.

1. In accordance with Policy 8240, prescription medication may be possessed and administered to students by employees that have been trained and approved by LCPS. A parent, legal guardian, eligible student, or other responsible adult must take all medication, including prescription medication, to the school clinic or office designated by the principal at the start of the school day for safekeeping. Students may also be allowed to possess and administer prescription medications in accordance with Policy 8240 and the student's individualized health plan.

2. A student who possesses or uses the student's own prescription medication shall be disciplined as described below:

- a. A student's first violation of Policy 8240 and this accompanying regulation within two calendar years that is also a violation of this

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subsection may be disciplined at the discretion of the principal up to and including a five-day assignment to in-school restriction (ISR). The student may also be referred to the school-based SAS, who will assess the student and provide school-based support, which may include assignment to an LCPS Substance Use Education class.

- b. A student's second and subsequent violation of Policy 8240 and this accompanying regulation within two calendar years that is also a violation of this subsection may be disciplined at the discretion of the principal up to and including a five-day suspension from school. The student may also be referred to the school-based SAS, who will assess the student and provide school-based support, which may include assignment to an LCPS Substance Use Education class.

C. Violations Involving a Tobacco/Nicotine Product or Drug Paraphernalia.

1. This subsection as related to tobacco/nicotine pertains to any product determined at the principal's sole discretion, to contain tobacco/nicotine, including but not limited to tobacco products, vaping products, or smoking devices (for example: JUUL devices, electronic cigarettes, vapor devices, and hookah pens).

2. A student who possesses, uses, or distributes a tobacco/nicotine product or drug paraphernalia shall be disciplined as described below:

- a. A student's first violation of Policy 8240 and this accompanying regulation within two calendar years that is also a violation of his subsection shall result in a three-day assignment to ISR and a referral to the school-based SAS, who will assess the student and provide school-based support, which may include assignment to a Substance Use Education class.
- b. A student's second and subsequent violation of Policy 8240 and this accompanying regulation within two calendar years that is also a violation of this subsection shall result in disciplinary action at the discretion of the principal, of no less than a five-day assignment to ISR and no more than a five-day suspension from school. The student shall also be referred to the school-based SAS, who will assess the student and provide school-based

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support, which may include assignment to a Substance Use Education class.

3. Notwithstanding the provisions of this subsection, if it is determined at the principal's sole discretion, that a student's possession of drug paraphernalia is indicative of the distribution of prescription medication, illegal drugs, or imitation/look-alike drugs, then the student shall be suspended from school for up to ten days and may be referred to the Office of School Administration (OSA) for consideration of further disciplinary action. The student shall also be referred to the school-based SAS, who will assess the student and provide school-based support.

D. Violations Involving Alcohol.

1. A student who possesses, uses, or is under the influence of alcohol shall be disciplined as described below:

- a. A student's first violation of Policy 8240 and this accompanying regulation within two calendar years that is also a violation of his subsection shall result in a five-day assignment to ISR and a referral to the school-based SAS, who will assess the student and provide school-based support, which may include assignment to a Substance Use Education class.
- b. A student's second and subsequent violation of Policy 8240 and this accompanying regulation within two calendar years that is also a violation of this subsection shall result in disciplinary action at the discretion of the principal, of no less than a five-day assignment to ISR and no more than a ten-day suspension from school. The student shall also be referred to the school-based SAS, who will assess the student and provide school-based support, which may include assignment to a Substance Use Education class.

2. A student who distributes alcohol or possesses alcohol with the intent to distribute shall receive a disciplinary sanction at the discretion of the principal, of no less than a five-day assignment to ISR and no more than a ten-day suspension from school. The student shall also be referred to the school-based SAS, who will assess the student and provide school-based support.

E. Violations Involving Possessing, Using, or Being Under the Influence of a Controlled Substance, Imitation/Look-Alike Controlled Substance, or Marijuana.

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1. Notwithstanding, and subject to Section B above, a student who otherwise possesses, uses, or is under the influence of a controlled substance, imitation/look-alike controlled substance, or marijuana, as contemplated in Va. Code § 18.2-247, shall be disciplined as described below:

- a. A student's first violation of Policy 8240 and this accompanying regulation within two calendar years that is also a violation of this subsection shall result in a five-day assignment to ISR and a referral to the school-based SAS, who will assess the student and provide school-based support, which may include assignment to a Substance Use Education class.
- b. A student's second and subsequent violation of Policy 8240 and this accompanying regulation within two calendar years that is also a violation of this subsection shall result in disciplinary action at the discretion of the principal of no less than a five-day assignment to ISR; the student may be suspended from school for up to ten days and referred to OSA for consideration of further disciplinary action. The student shall also be referred to the school-based SAS, who will assess the student and provide school-based support, which may include assignment to a Substance Use Education class.

2. Notwithstanding the provisions of this subsection, if it is determined at the principal's sole discretion that a student possessed or used at school a Schedule I or Schedule II drug (e.g., heroin, LSD, ecstasy, fentanyl, cocaine, etc.) or an imitation/look-alike Schedule I or Schedule II drug, then the student shall receive a disciplinary sanction of no less than a five-day assignment to ISR; the student may be suspended from school for up to ten days and referred to OSA for consideration of further disciplinary action. The student shall also be referred to the school-based SAS, who will assess the student and provide school-based support, which may include assignment to a Substance Use Education class.

F. Violations Involving the Distribution of, or Possession with Intent to Distribute, a Controlled Substance, Imitation/Look-Alike Controlled Substance, or Marijuana.

1. A student's violation of this subsection shall result in a ten-day suspension from school and a referral to OSA for consideration of further disciplinary action. The student shall also be referred to the school-based SAS, who will assess the student and provide school-based support.

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2. Notwithstanding the provisions of this subsection, if it is determined at the principal's sole discretion that a student's first violation related to the distribution of any substance containing THC (e.g., marijuana, THC vapes, THC edibles) was not done for profit, then the principal may opt to suspend the student from school for six to ten days, in lieu of a referral to OSA. The student shall also be referred to the school-based SAS, who will assess the student and provide school-based support, which may include assignment to a Substance Use Education class.

G. Additional Violations of Policy 8240.

1. A student who otherwise violates the provisions of Policy 8240 may be subject to disciplinary action up to and including a ten-day suspension from school and referral to OSA for consideration of further disciplinary action. The student shall be referred to the school-based SAS, who will assess the student and provide school-based support, which may include assignment to a Substance Use Education class.

H. Appeal Procedure.

1. Any suspension from school of ten or fewer days may be appealed in accordance with Policy 8220, Student Suspension from School.

2. Any disciplinary sanction imposed by OSA that is beyond a short-term suspension may be appealed in accordance with Policy 8230, Appeals and Hearings—Student Discipline.

3. Assignment to ISR and/or a Substance Use Education Class is not appealable.

I. Substance Use Education Class.

1. A Substance Use Education class can be for one or multiple days and can occur at the student's base school or at another location, depending on the recommendation made by the SAS. Pursuant to Policy 8240, a disciplinary assignment to a Substance Use Education class under this regulation is not a placement in an alternative education program.

2. Whenever practicable, any assignment to a Substance Use Education class shall occur during the student's assignment to ISR or during non-instructional time.

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3. Upon completing the Substance Use Education class, a student and the student's parent(s)/guardian(s) will be provided recommendations for further support, which may include follow-up services, group or individual counseling provided by a school-based SAS, and/or a referral for a community-based substance use assessment.

J. Special Circumstances. The Superintendent or Superintendent's designee may determine, based on the facts of the particular case, that special circumstances exist, and another form of discipline is appropriate. In addition, the Superintendent or the Superintendent's designee may conduct a preliminary review of such cases to determine whether a disciplinary action, other than what is provided for under Policy 8240 and this regulation, is appropriate. Any disciplinary action imposed pursuant to such a review must be taken in accordance with Article 3 of Chapter 14 of Title 22.1 of the Code of Virginia.

K. Students with Disabilities. Students with disabilities are subject to the provisions of Policy 8240 and this accompanying regulation and will be disciplined in accordance with Regulation 8220.3, Disciplinary Procedures for Students with Disabilities.

L. Required Reporting to Parents and Local Law Enforcement. The principal or principal designee shall report a violation of Policy 8240 to parents and local law enforcement as required by Policy 7554, Employee Responsibility Concerning Student Alcohol and Drug Usage, and as required by Virginia Code § 22.1-279.3:1.

[Former Regulations 8-35, 8-36, 8-37]

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Legal Refs: Code of Virginia §§ [22.1-247](#); [22.1-277.2:1\(A\)](#); [22.1-277.06](#); [22.1-277.08](#); [22.1-279.3:1](#); Controlled Substances Act [21 U.S.C. § 801](#) *et seq.* and [21 U.S.C. § 812\(c\)](#)

Cross Refs: Policy [8240](#), Alcohol, Drug, Tobacco and Electronic Cigarettes; Policy [7554](#), Employee Responsibility Concerning Student Alcohol and Drug Usage; Policy [8220](#), Student Suspension from School; Policy [8230](#), Appeals and Hearings—Student Discipline; Policy [8210](#), Introduction to Student Discipline; Regulation [8220.3](#), Disciplinary Procedures for Students with Disabilities; Policy [8420](#), Student Medication